Statutes (43 U. S. C. 711) and section 1 of the act of June 25, 1910, Ch. 421 (36 Stat. 847; 43 U. S. C. 141) and otherwise and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 5364 of June 5, 1930, withdrawing certain public lands on Unalaska Island, Alaska, for use of the Department of the Navy is hereby revoked so far as it affects the following-described lands:

Starting at a point on the North shore of Erskine Bay at a point of Longitude 166°34' 00" West and approximate Latitude 53°46' 00" North; thence South across Erskine Bay to Latitude 53°43'00" North; thence West to Longitude 166°50'00" West; thence North to Latitude 53°51'00" North; thence East to Longitude 166°38'00" West; thence South to Latitude 53°49'00" North; thence East to Longitude 166°34'00" West; thence South to the shore on Erskine Bay and the place of beginning.

The area described aggregates approximately 60,441 acres.

2. Executive Order No. 9153–A of April 30, 1942, withdrawing public lands in Alaska for use of the War Department for military purposes, which was partially revoked by Public Land Order No. 827 of May 16, 1952, is hereby revoked so far as it affects the following-described lands, referred to as Tract No. 1 and Tract No. 2 in said order:

TRACT NO. 1

Beginning at a point on line of mean high tide on north shore of Makushin Bay, Unalaska Island, 53°45'31" N. latitude, 166° 55' W. longitude, as shown on U. S. Coast and Geodetic Survey Chart No. 8802; Thence from said initial point, by metes and bounds; North across Unalaska Island to line of mean high tide on Bering Sea; Easterly and southwesterly around Cape Cheerful, Cape Kaletka, Erskine Point and Brundage Head along line of mean high tide with meanders of Bering Sea, Unalaska Bay, Kaletka Bay, Unalga Pass, Beaver Inlet, and Erskine Bay to the head of Erskine Bay; Southwesterly on straight line across Unalaska Island to the head of Portage Bay at mean high tide; Westerly and northwesterly along shore of Portage Bay and Makushin Bay at mean high tide around Cathedral Point to the point of beginning.

The area described, including both public and non-public lands, aggregates approximately 200,000 acres.

TRACT NO. 2

All of Hog Island, in Unalaska Bay, near Unalaska Island, as shown on U. S. Coast and Geodetic Survey Chart No. 9007.

The area described aggregates 110 acres.

Excepting from tract No. 1, however, the following described areas, which shall remain within the withdrawal created by Executive Order No. 9153–A:

Cape Wislow A. W. S. Station

(a) A tract of land at Cape Wislow lying between latitude 53°59"08" N., and the Bering Sea; and between longitude 166°43'11" W., and 166°46'14" W.

The tract described contains approximately 2,000 acres.

Fort Learnard

(b) A tract of land at Elder Point lying between latitudes 53°56'27" N., and 53°58'40" N.; and between Unalaska Bay and longitude 166°38'41" W.

The tract described contains approximately 2,200 acres.

Fort Brumback

(c) A tract of land on Summer Bay lying between latitudes 53°53'47" N., and 53°55'18" N.; and lying west of longitude 166°25'00" W.

The tract described contains approximately 1,500 acres.

Constantine Point Base End Station

(d) A tract of land on Unalaska Bay lying north of latitude 53°56'22" N., and west of longitude 166°25'00" W.

The tract described contains approximately 650 acres.

Erskine Point Fire Control Station

(e) A tract of land at Erskine Point between Kalekta Bay and Unalga Pass lying north of latitude 53°57'56" N.

The tract described contains approximately 700 acres.

Ugadaga Bay Fire Control Station

(f) A tract of land on Ugadaga Bay and Beaver Inlet lying south of latitude 53°50'45" N., and east of longitude 166°25'00" W.

The tract described contains approximately 800 acres.

3. Subject to valid existing rights, the following-described public lands, which are a portion of the lands described in paragraph 2 of this order, are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and the mineral-leasing laws, and reserved for use of the Department of the Navy for military purposes:

(a) All of Hog Island, in Unalaska Bay, near Unalaska Island, as shown on U. S. Coast and Geodetic Survey Chart No. 9007.

The area described aggregates 110 acres.

(b) Beginning at a point identified as C. & G. S. triangulation Station "Ober," latitude 53°51'25.038" N., longitude 166°33' 41.314" W., located on the south shore of Captains Bay, Unalaska Island, thence South, along said longitude to intersection with latitude 53°48'00" N.; East, along said latitude to intersection with longitude 166°31' 35" W.; North, along said longitude to intersection with latitude 53°50'48" N.; West, along said latitude to intersection with longitude 166°32'20" W.; North, along said longitude to intersection with southwest boundary of Unalaska Townsite Reservation by Executive Order 8573 of October 21, 1940; Northwesterly, along south boundary of the Townsite Reservation to a point on the south shore of Captains Bay; Southwesterly, along shore of Captains Bay to point of beginning.

The tract described contains approximately 3,500 acres.

4. Subject to valid existing rights, the following-described public land is hereby withdrawn from sale or disposal and reserved for use of the Department of the Army in connection with the Alaska Communication System:

Beginning at Corner No. 1 M. C., U. S. Survey No. 2567, thence S. 44° 42' W., 114.48 feet to a point on line 2–3, U. S. Survey No. 1946, N. 42° 52' W., 157.23 feet to corner No. 3, U. S. Survey 1946, S. 47° 04' W., 393.36 feet to corner No. 4, U. S. Survey 1946, S. 43° 04' E., 173.45 feet on line 1–4, U. S. Survey 1946, S. 44° 42' W., 342.72 feet, West 422.06 feet, N. 44° 42' E., 1,143.11 feet to a point on the meander line of U. S. Survey 2567. Thence along the meander line of said survey the following three courses, S. 42° 34' E., 25.24 feet, S. 41° 34' E., 144.54 feet, S. 51° 35' E., 131.34 feet to point of beginning.

The tract described contains 5.10 acres.

5. At 10:00 a. m. on the 35th day after the date of this order the unappropriated, unreserved public lands affected by this order shall be opened to settlement under the homestead laws or the Alaska Homesite Act of May 26, 1934 (48 Stat. 809; 48 U. S. C. 461), or the Small Tract Act of June 1, 1938 (52 Stat. 609; 43 U. S. C. 682a) as amended, and to those forms of appropriation only by qualified veterans of World War II for whose services recognition is granted by the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, and by other qualified persons entitled to credit for service under the said act. Commencing at 10:00 a. m. on the 126th day after the date of this order any of such lands not settled upon by veterans or other persons entitled to credit for service shall become subject to settlement and other forms of appropriation by the public generally in accordance with appropriate laws and regulations.

Veterans' preference-right applications under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, may be filed on or before 10:00 a. m. on the 35th day after the date of this order, and those covering the same land shall be treated as though simultaneously filed at that time. Applications filed under the act after that time and during the succeeding 91 days shall be considered in the order of filing. Applications by the general public under the public land laws, filed on or before 10:00 a. m. on the 126th day after the date of this order shall be treated as though simultaneously filed at that time, where the applications are for the same lands; otherwise, priority of filing shall govern.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Anchorage, Alaska.

ORME LEWIS,
Assistant Secretary of the Interior.

MARCH 8, 1955.

[F. R. Doc. 55–2115; Filed, Mar. 14, 1955; 8:48 a. m.]

[Public Land Order 1088]

ALASKA

WITHDRAWING PUBLIC LANDS FOR USE OF THE DEPARTMENT OF THE ARMY AS AN AMMUNITION STORAGE SITE; PARTIALLY REVOKING EXECUTIVE ORDER NO. 1919½ OF APRIL 21, 1914, PUBLIC LAND ORDER NO. 219 OF MARCH 28, 1944, AND PUBLIC LAND ORDER NO. 396 OF AUGUST 19, 1947

By virtue of the authority vested in the President by section 1 of the act of March 12, 1914 (38 Stat. 305, 307; 48 U. S. C. 303, 304, 307) and the act of June 4, 1897 (30 Stat. 11, 36; 16 U. S. C. 473), and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Alaska are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for use of the Department of the Army as an Ammunition Storage Site:

Commencing at U. S. E. D. Station "A" situated on the center line of the Alaska Railroad at railroad station 103+00; thence S. 71°18' E. along said railroad center line for a distance of approximately 2335 feet to a point; thence S. 18°42' W. for a distance of 100 feet to the True Point of Beginning for this description; thence S. 8°45' W. for a distance of 1615 feet to a point; thence S. 48°36' W. for a distance of 3015 feet to a point; thence N. 41°24' W. for a distance of 3205 feet to a point; thence N. 48°36' E. for a distance of 2960 feet to a point that is 100 feet southwest of the center line of the Alaska Railroad when measured at right angles thereto; thence S. 71°18' E. 100 feet from and parallel to said center line, for a distance of 2500 feet to the True Point of Beginning.

The tract described contains approximately 265 acres.

This order shall take precedence over but not otherwise affect the Proclamation of July 23, 1907, withdrawing lands for national forest purposes, so far as it affects the above-described land.

Executive Order No. 1919½ of April 21, 1914, reserving certain lands in Alaska for townsite purposes, and Public Land Order No. 219 of March 28, 1944, enlarging the reservation made by such Executive order, are hereby revoked so far as they affect portions of the above-described lands.

Public Land Order No. 396 of August 19, 1947, which reserved certain lands for use of The Alaska Railroad is hereby revoked so far as it affects the following-described lands: *Provided*, That The Alaska Railroad will have access to the land to maintain or repair the dikes along the banks of O'Neils Creek and that the Army will make no alterations of the flow channels of the creek within one thousand feet of the railroad without first obtaining the consent of The Alaska Railroad.

Beginning at a point which bears S. 18° 42' W., 100.00 feet from the center line of the main track of The Alaska Railroad, Passage Canal Connection, at survey station "B" 79 plus 65.00, Mileage F-2.07. From the point of beginning, Location Monument Station "A," established by the U. S. Army, Alaska, District Engineer, at coordinate point N. 9,944.44, E. 142,565.70 marked by a concrete monument set at subgrade in the center line of the main track at survey station "B" 103 plus 00, bears N. 68° 50' 52" W., 2,237.14 feet.

From the point of beginning, thence S. 8° 45' W., 456.87 feet to a point on the line between Corner No. 9 and Corner No. 10 of Public Land Order No. 396; thence along the said line N. 71° 18' W. 297.72 feet; thence S. 78° 42' W. 1,760.00 feet; thence N. 38° 16' W., 825.46 feet; thence N. 18° 42' E., 880.00 feet to a point which lies S. 18° 42' W., 100.00 feet from the center line of the main track at survey station "B" 104 plus 00; thence S. 71° 18' E., 2,435.00 feet to the point of beginning.

The tract described contains 51.36 acres, which are included in the withdrawal made by this order.

ORME LEWIS,
Assistant Secretary of the Interior.

MARCH 8, 1955.

[F. R. Doc. 55-2116; Filed, Mar. 14, 1955; 8:48 a. m.]

NOTICES

DEPARTMENT OF THE INTERIOR

Bureau of Indian Affairs

[Bureau Order 551, Amdt. 12]

REDELEGATIONS OF AUTHORITY

Order No. 551, as amended (16 F. R. 2939, 5456, 7467, 8252; 17 F. R. 3516, 7552; 18 F. R. 7305; and 19 F. R. 1936, 3482, 3971, 4544, 4585, 7416), is further amended as hereinafter indicated.

1. Section 4 under the heading, Functions Relating to Indian Lands and Minerals, is revised and amended to read as follows:

SEC. 4. *Sales, fee patents, and other matters in 25 CFR Part 241.* The taking of action with respect to those matters set forth in 25 CFR Part 241, provided that the authority delegated in this section shall not be deemed to enlarge the authority delegated in section 132 of this order with respect to the approval of mortgages and deeds of trust.

2. A new section 400, to read as follows, is added:

SEC. 400. *Repeals.* The following provisions of this order are repealed:

Section 5.
Section 6.
Section 7.
Section 13.
Section 17.
The heading Functions Relating to Supply Contracts and section 300 thereunder.
The heading Functions Relating to Construction Contracts and section 305 thereunder.

GLENN L. EMMONS,
Commissioner.

FEBRUARY 17, 1955.

[F. R. Doc. 55-2106; Filed, Mar. 14, 1955; 8:45 a. m.]

Bureau of Land Management

IDAHO

ORDER PROVIDING FOR OPENING OF PUBLIC LANDS

The State of Idaho has certified that the hereinafter-described lands patented to the State under the provisions of section 4 of the act of August 18, 1894 (28 Stat. 422; 43 U. S. C. Sec. 641), as amended, commonly known as the Carey Act, have not been reclaimed, as required by the Carey Act, and that water is not available for the irrigation of these tracts. The State of Idaho, therefore, has reconveyed the lands to the United States:

BOISE MERIDIAN, IDAHO

T. 3 N., R. 26 E.,
Sec. 13, SW¼SW¼;
Sec. 29, SW¼NE¼.
T. 4 N., R. 26 E.,
Sec. 29, NW¼SW¼.

The areas described total 120 acres.

The lands described are located in Idaho Grazing District No. 3. These lands are located near Arco, Idaho, at an elevation of approximately 5,325 feet. The topography is undulating plain, the soil being silt loam with localized gravel deposits, with a sagebrush-grass cover. These are grazing lands, portions of which are suitable for irrigated farming, provided an adequate source of water can be developed.

No application for these lands will be allowed under the homestead, desert-land, small-tract or any other nonmineral public land law, unless the lands have already been classified as valuable or suitable for such type of classification or shall be so classified upon consideration of an application.

Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

This order shall not otherwise become effective to change the status of the described land until 10:00 a. m. on the 35th day after the date of this order. At that time, the said lands shall become subject to application, petition, location and selection under the applicable public-land laws, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws and the 91-day preference right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284), as amended. All applications filed pursuant to the Veterans' Preference Act of 1944, on or before 10:00 a. m. of the 35th day after the date of this order shall be treated as though simultaneously filed at that time. All other applications under the public-land laws filed on or before 10:00 a. m. of the 126th day after the date of this order shall be treated as though simultaneously filed at that time.

Inquiries concerning these lands shall be addressed to Manager, Land Office, Box 2237, Boise, Idaho.

J. R. PENNY,
State Supervisor.

MARCH 3, 1955.

[F. R. Doc. 55-2107; Filed, Mar. 14, 1955; 8:45 a. m.]